

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN GUATEMALA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Guatemala, grounded in the environmental licensing system under MARN, prior consultation under ILO Convention 169, the amparo and the Constitutional Court, community consultations, and documented community campaigns

*This guide uses the Guatemalan legal terms you will actually encounter (the *licencia ambiental* and the *instrumento ambiental*, MARN and MEM, the categories A, B1, B2 and C, the *vista al público*, *consulta previa*, the *amparo* and *amparo provisional*, the *Corte de Constitucionalidad*, the *consulta comunitaria*, and so on), each explained in plain language where it first comes up. Guatemala's regulations are amended often; the core mechanics below apply, but always check the current position.*

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Spanish terms are given with a short English gloss.

A note on money. Budgets in this guide are in quetzales (Q). Every figure is indicative — Guatemalan community campaigns are often run at very low cost with volunteer effort, community structures, and lawyers from public-interest organisations. Treat the ranges as a menu, not a bill.

A note on risk — read this before acting. Guatemala is one of the most dangerous countries in the world in which to defend land and territory. Indigenous authorities and community leaders opposing mining, hydro, and agro-industrial projects have faced **criminalisation** — arrest warrants and prosecutions brought against them — as well as threats, violence, and the imposition of states of exception in conflict areas. This guide is written with that reality in mind: it prioritises the **legal and documentary routes**, urges you to work through recognised community and Indigenous structures, and repeatedly flags safety. Please read Section 13 carefully, and get advice from a human-rights organisation before acting.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Guatemala — and the country offers one of the strongest legal levers found anywhere, so knowing how to use it is most of the battle. Guatemalan law requires projects that may affect the environment to obtain a **licencia ambiental** (environmental licence) from the **Ministry of Environment and Natural**

Resources (MARN), on the basis of an **instrumento ambiental** whose depth depends on the project's category — with the most damaging projects requiring a full **environmental impact study** and a period of **public display and comment**. But the decisive lever sits above that. Guatemala has ratified **ILO Convention 169**, and the **Corte de Constitucionalidad** — the Constitutional Court — has held that the Convention carries **constitutional rank**, and that mining and hydroelectric licences granted **without prior consultation of the affected Indigenous peoples are illegal and arbitrary**. The courts have acted on this: in the **Escobal** case the Supreme Court, sitting as a tribunal of **amparo**, granted a **provisional amparo suspending the mining licence**, and the Constitutional Court in 2018 held that the State had violated the **Xinka** people's right to prior, free, informed and good-faith consultation — having gone so far as to deny that the Xinka existed in the affected municipalities — ordering the suspension of operations and a proper consultation. Licences for the **Oxec** hydroelectric projects were likewise suspended, the State having begun consultation only after construction was under way.

That is a genuinely powerful toolkit. The honest counterweight is heavy. Guatemala's institutions are weak and under-resourced; environmental licences are granted on studies the developer commissions; the Ministry of Energy and Mines has issued licences over community objection and, in the Escobal case, denied the existence of an entire people; the Constitutional Court has been inconsistent, and in 2018 declared the **34 community consultations** held by Maya Kaqchikel communities of San Juan Sacatepéquez to be legally "non-existent", holding that only the ministry may authorise extractive projects; and — most seriously — **opposing these projects is dangerous**. Indigenous authorities and community leaders have been criminalised, prosecuted, and imprisoned, and communities have faced militarisation and states of exception. Communities across the country — facing metal mining, hydroelectric dams on Indigenous rivers, cement and lime quarrying, monoculture plantations and their water use, and infrastructure projects — have organised against exactly this.

What "winning" realistically means. Rarely a permanent, tidy national "no". More often: a **licence suspended by an amparo** while consultation is ordered; a **consultation process that the community controls and uses to record its refusal**; an environmental licence refused, conditioned, or annulled; a project delayed for years until its financing or its politics collapse; a company withdrawing; or a **precedent established** that other communities then use. Each has happened in Guatemala, including against an operating mine. The realistic goal is to get the consultation question before the courts early, secure suspension while it is litigated, and organise so thoroughly that the community's position is unmistakable — while keeping people safe.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down the project's category, which licences it needs, whether Indigenous peoples are affected, and the deadlines.
2. **Documentation** — build an evidence record strong enough for the public display, an amparo, and a consultation process.
3. **Local opposition** — organise through the community's own and Indigenous authorities, which is both the safest route and the legal foundation of the consultation right.
4. **Legal challenges** — use the licence process, the **amparo** with a request for provisional suspension, and the consultation right under ILO 169.
5. **Media strategy** — generate coverage that raises the political cost and helps protect the people involved.

No single step wins alone. In Guatemala the combination that works is **organised Indigenous and community authority plus an early amparo on consultation**, backed by documentation and media.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Guatemala's system is under-resourced, licences are issued on developer-funded studies, ministries have overridden community objection, the courts have been inconsistent, and defenders face criminalisation and violence. Assessing that honestly helps you choose the right tools: the strongest routes are an **amparo raising the absence of prior consultation**, with an urgent request for **provisional suspension**; a rigorous intervention in the **vista al público**; and organisation through recognised **Indigenous and community authorities**, whose standing and legitimacy are what the consultation right rests on. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations, including criminalisation.

How to use this guide

Read Sections 1–3 and, importantly, Section 13 before acting. Then work Section 4 (Target Identification) — it tells you the category, the licences, whether the consultation right is engaged, and the deadlines. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, how to proceed safely.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Guatemala is a **unitary republic** with departments, **municipalities** enjoying constitutional autonomy, and — legally recognised alongside them — **Indigenous peoples with their own authorities and forms of organisation**. Environmental regulation rests on the **Ley de Protección y Mejoramiento del Medio Ambiente (Decreto 68-86)** and its implementing regulation, the **Reglamento de Evaluación, Control y Seguimiento Ambiental (RECSA, Acuerdo Gubernativo 137-2016, as reformed)**. Power over a project is shared between **MARN**, the sector ministry, the municipality, and — as the decisive check — the **courts**.

The bodies that decide — and what each one controls

MARN (Ministerio de Ambiente y Recursos Naturales). The environmental authority. It categorises projects, receives and reviews the **instrumento ambiental**, runs the **vista al público**, and issues the **resolución** granting or refusing **viabilidad ambiental** and, with it, the **licencia ambiental**. The licence is required **before** the project begins, and it does not exempt the developer from other sanctions or from ongoing control and monitoring.

MEM (Ministerio de Energía y Minas). For mining and hydroelectric projects, the ministry that grants the **reconnaissance, exploration and exploitation licences** and the concessions over public-domain assets such as rivers. This is the **second key**, and — critically — it is the ministry whose licences the courts have suspended for want of consultation. In most serious Guatemalan conflicts, **MEM's licence is the real target**.

The municipality. Municipalities have constitutional autonomy, control local land use and construction licensing, and may hold **consultas de vecinos** under the Municipal Code. A municipal council formally opposed to a project is a significant political and administrative obstacle.

Indigenous authorities and community structures. Ancestral authorities, Indigenous mayors, community development councils, and assemblies are recognised actors. Where a project affects Indigenous peoples, **these authorities are the rights-holders** for consultation purposes, and their internal decision-making is what the courts have looked to.

The courts. The ordinary courts, the **Corte Suprema de Justicia (CSJ)** sitting as a tribunal of **amparo**, and the **Corte de Constitucionalidad (CC)** as the final constitutional authority. Because the CC's consultation jurisprudence is the strongest lever available, the courts are part of the decision-making system here, not merely a remedy.

Which one is "yours"? Ask: what **category** is the project under the Listado Taxativo — **A**, **B1**, **B2**, or **C** — and therefore what instrument and what public process apply? Does it need an **MEM licence** as well as MARN's? Does it affect **Indigenous peoples**, triggering consultation? Does it affect a **river**, a protected area, or municipal land? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

Under the environmental regime the path is roughly:

1. **Categorisation**. The project is placed in a category by the **Listado Taxativo**: **Category A** (high impact) requires a full **environmental impact study**; **B1** (moderate) a substantial impact study; **B2** (low) a simpler environmental report with mitigation measures; and **C** (minimal) little more than a registration or simplified form. The category decides how much scrutiny and how much public process you get, so **challenging an under-categorisation is itself a strategy**.
2. **Submission and review**. The developer's licensed consultant prepares the instrument and files it with MARN, which reviews it and may require expansions and mandatory opinions from other agencies.
3. **The vista al público — your formal window**. For the more significant categories the instrument is placed on **public display**, with a period for the public to inspect it and submit objections, and provision for a **public meeting where one is requested**. In the published procedure for the moderate category, this is structured as **twenty days of public display**, with a further short window in which a meeting may be requested and scheduled, before the analysis and resolution stages. Treat these as short, hard deadlines.

- ## The rulebook — the policies that decide the outcome

- ## Follow the money – why the system often leans toward "yes"

The overseers — who watches the decision-makers

- Naming and using the right body matters: in Guatemala the most consequential early judgment is usually **whether the consultation right is engaged, and how quickly an amparo can be filed.**

QUICK REFERENCE: SUCCESS RATES

Individual Step Success Rates



Approach	Success Rate	Timeline	Cost (Q)	What "Success" Means
Documentation only	5-10%	2-4 months	low	Project slowed; basis for other steps
Local opposition only	20-35%	6-24 months	low	Local refusal visible; political cost
Objections at the vista al público	15-25%	1-2 months	low	On record; conditions or refusal
Consulta comunitaria	20-35%	3-12 months	low-moderate	Refusal documented; strong legitimacy; limited legal effect
Municipal opposition	25-40%	6-18 months	low	Local licences withheld; political obstacle
PDH complaint	15-25%	3-12 months	minimal	Findings; accompaniment; protection
Amparo on environmental grounds	25-40%	6-36 months	moderate	Licence annulled or suspended
Amparo on lack of prior consultation	45-65%	6-48 months	moderate	Licence suspended; consultation ordered
Media only	15-25%	2-6 months	low	Public knows; some protection
Docs + local opposition + media	30-45%	9-24 months	low-moderate	Pressure plus stronger case
All steps combined	50-70%	12-60 months	moderate	Licence suspended or annulled, consultation ordered and controlled by the community, project delayed or abandoned

Key insight: all steps together are far more effective than any single one — and the multiplier in Guatemala is the **consultation amparo**, which converts a local dispute into a constitutional question the courts have repeatedly resolved in communities' favour. The distinctive Guatemalan advantages are that **ILO 169 has constitutional rank**, that **provisional amparo can suspend a licence quickly**, and that Indigenous authorities have recognised standing. The distinctive disadvantages are institutional weakness, judicial inconsistency, extremely long timelines, and **serious personal risk to those who lead**.

A note on legal cost: the vista al público, a PDH complaint, and community organising cost little. An amparo is comparatively inexpensive to file and is usually carried by public-interest legal organisations, which have brought most of the landmark cases. The real costs are technical evidence, travel across dispersed communities, translation into Indigenous languages, and — importantly — legal defence for leaders who are criminalised, which should be budgeted from the start.

Effectiveness Visualization

SUCCESS PROBABILITY (licence suspended or annulled, consultation ordered, project delayed or abandoned)

FAVOURABLE SCENARIO (Indigenous peoples affected, consultation absent, organised authorities, legal support engaged):

All steps combined:	50-70%
Consultation amparo:	45-65%
Municipal opposition:	25-40%
Single step:	5-35%

TILTED SCENARIO (no Indigenous consultation trigger, powerful proponent, criminalisation of leaders):

All steps combined:	30-45%
Environmental amparo:	20-35%
Local + media:	15-30%
Single step:	3-15%

How to read this honestly. In Guatemala the strongest legal fact by a wide margin is the **absence of prior consultation where Indigenous peoples are affected** — the courts have suspended mining and hydro licences on exactly this ground. Where that trigger is not available, the case rests on ordinary environmental grounds: wrong categorisation, an inadequate study, a resolution that is not properly reasoned, or breach of conditions — real but weaker. And be clear-eyed about time and cost: the Escobal litigation ran from a provisional suspension in 2017 through a 2018 Constitutional Court judgment to a consultation whose results the Xinka people delivered in 2025, alongside the criminalisation of community leaders. Guatemalan wins are real, but they are measured in years, and they demand

protection for the people who carry them.

Step Importance Ranking (When All Combined)

1. **Legal challenges** — specifically the consultation amparo, which is the highest-yield action available.
2. **Local opposition through Indigenous and community authorities** — the legal foundation of the consultation right and the source of legitimacy.
3. **Documentation** — the evidence for the amparo, the consultation, and the record of harm.
4. **Media** — raises political cost and, importantly, provides a measure of protection to those at risk.
5. **The administrative route** — objections at the vista al público and municipal action: cheap and useful, rarely decisive alone.

Winning Guatemalan campaigns combined organised Indigenous authority, an early amparo on consultation, sustained documentation and media, and — indispensably — legal protection for the leaders.

What Guatemalan Campaigns Actually Show

A few patterns recur across documented Guatemalan fights. **Consultation is the winning ground** — the Constitutional Court has held ILO Convention 169 to have **constitutional rank**, and that mining and hydroelectric licences granted without consultation are **illegal and arbitrary**. **Courts will suspend real projects** — in the **Escobal** case the Supreme Court granted a **provisional amparo suspending the mining licence** in 2017, and the Constitutional Court's 2018 judgment found the State had violated the **Xinka** people's consultation rights, ordered suspension, and required a consultation; licences for the **Oxec** hydroelectric projects were also suspended, the ministry having begun consultation only once the works were built or building. **The consultation itself can be community-controlled** — the Xinka process ran through pre-consultation, technical analysis, field visits, and internal deliberation according to the people's own forms of organisation and decision-making, and produced a documented refusal delivered in 2025. **But community consultations have limited legal force** — between 2006 and 2018 Maya Kaqchikel communities of San Juan Sacatepéquez held **34 consultations** rejecting a cement and lime project, with around 98% against, conducted in Kaqchikel with translators and validated by ancestral authorities; in 2018 the Constitutional Court nonetheless declared them legally "non-existent", reasoning that only the ministry may authorise extractive projects. **And leaders pay a price** — criminalisation of Indigenous authorities is a documented, recurring feature of these conflicts. The through-line: **organise through your own authorities, litigate the consultation right early, use community consultation for legitimacy rather than as a legal veto, and protect your leaders from the outset.**

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and keep the answers in a shared, secure document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, milpa and farmland, forest, a **river or spring** the community drinks from, sacred and ceremonial sites, burial grounds), and what the project would do to it. Obtain the **instrumento ambiental** from MARN — it is the developer's own account, and it is where the impacts are admitted. List every admitted impact with its page reference. Pay particular attention to **water** — quantity as well as contamination — because in Guatemalan conflicts water is the issue that unites communities and the one that most often proves decisive.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the project's **category** — A, B1, B2, or C — and therefore the instrument and the public process; (b) whether it also needs an **MEM licence or concession**, which is usually the more vulnerable decision; (c) which **municipality** must license construction or land use; and (d) — decisively — whether **Indigenous peoples are affected**, since that engages the consultation duty. Note that the affected people's own self-identification is the criterion that matters, and that in the Escobal case the ministry's attempt to deny a people's existence was itself found unlawful.

Question 3: What Specific Action Stops It?

A project can be stopped or suspended at several points: the **environmental licence refused or annulled**; the **MEM licence suspended by amparo** for want of consultation — the strongest route; a **municipality withholding local licences**; conditions tightened; or the project abandoned after years of suspension. Map every point and pursue at least two in parallel.

Question 4: When Is the Decision Final?

Diarise the deadlines. The **vista al público** is short — in the published procedure for the moderate category, twenty days of display, with only a few days in which to request a public meeting — and it is easy to miss because notice is often minimal. Administrative challenges to a resolution have their own short periods under the administrative-procedure law, so confirm them immediately with a lawyer. The **amparo** should be filed **as soon as the unlawful act is known**, and where works are advancing, at once, because **provisional suspension is what prevents irreversible harm**. Consult a lawyer about the specific periods before you rely on any of them.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which company and parent group hold the licences (several of Guatemala's largest conflicts involve foreign-listed mining companies operating through local subsidiaries), when the licences were granted and in what sequence, what water rights or concessions were involved, and which local actors benefit. Use public sources — the commercial registry, MEM's licence records, MARN's files, and procurement data. Build a dated, sourced timeline, and **keep it secure**: in Guatemala this information is sensitive, and publishing accusations exposes you both to legal action and to real danger.

Output of Step 1: a one-page fact sheet with the project's exact description, its category and licences, whether the consultation right is engaged, the municipality's position, every deadline, and the money map — held securely.

Worked example: which lever is actually open

Suppose a hydroelectric project is licensed on a river running through Q'eqchi' communities, with an environmental instrument approved and construction beginning. Working the questions: **Q1** — the instrument admits diversion of the river the communities use for water, washing, and fishing, and works on land they occupy. **Q2** — it needs a **MARN licence** (likely Category A or B1) and, critically, an **MEM concession over the river**, which is public-domain; and the affected communities are **Indigenous**, so the consultation duty is engaged. **Q3** — the live levers are: objections at the **vista al público** if it is still open; an **amparo** against the MEM licence for **absence of prior consultation**, with an urgent request for **provisional suspension**; a **PDH** complaint; and municipal opposition. **Q4** — you act immediately, because construction is advancing and provisional suspension is the only fast remedy. **Q5** — MEM's records show when the concession was granted and whether any consultation preceded it. In an afternoon you know that **the consultation amparo is the decisive card** — exactly the ground on which the Oxec licences were suspended — and that legal protection for the community's authorities must be arranged in parallel.

STEP 2: DOCUMENTATION

Documentation separates a campaign the authorities and the courts take seriously from one dismissed as complaint. In Guatemala it has three targets: objections at the **vista al público**, the **amparo** (above all on consultation), and — distinctively — the **consultation process itself**, which the community may end up conducting and which requires its own record. Because leaders face criminalisation, documentation also serves a fourth purpose: **protecting people**, by creating a public, dated record of peaceful, lawful community action.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project, and — where Indigenous rights are engaged — prove the community's presence and relationship to the territory.

Water first. Document springs, streams, rivers, and the community's water sources: where they are, who uses them, for what, and their condition, with dated photographs and simple flow and quality observations. Water is the decisive issue in most Guatemalan conflicts, and the one that mobilises whole municipalities.

Territory, occupation, and identity. Where Indigenous peoples are affected, document **presence, occupation, and**

community life with unusual care: settlements and their history, milpa and communal land, ceremonial and sacred sites, cemeteries, the language spoken, ancestral authorities and how they are chosen, and the community's own decision-making practice. This is the evidentiary heart of a consultation claim — and the Escobal case shows why, since the State attempted to deny that the affected people existed at all.

Land, farming, and livelihoods. Document holdings, crops, forest use, and the households dependent on them.

Health and homes. Document settlements and their distance from the works, the population, and existing health conditions, so later change can be shown.

How to hold it. Keep everything dated, geo-referenced, and backed up **securely and in more than one place**, including outside the community. Bilingual records — in the community's language and Spanish — are both more legitimate and more useful.

LAYER 2: IMPACT ANALYSIS

Show what the project would do, and whether it was lawfully authorised. Catalogue four things:

1. **Admitted impacts.** Every harm the **instrumento ambiental** itself concedes, with page references — the fastest usable material.
2. **Water and cumulative effects.** Scrutinise the treatment of water quantity and quality, downstream users, and — routinely omitted — the **combined effect** of other licences and projects in the same watershed.
3. **Categorisation and procedure.** Whether the project was placed in **too low a category** for its true scale; whether the **vista al público** was properly held and notified; whether mandatory opinions were obtained; and whether the resolution is genuinely **reasoned** as the administrative-procedure law requires, rather than boilerplate.
4. **Consultation.** Whether any consultation occurred **before** the licence; if so, whether it was with the peoples' **own representative institutions**, in good faith, in their language, and genuinely prior — or, as in the Oxec conflicts, begun only after works had started, which the courts treated as a violation of the Convention's requirement that consultation be prior.

Get expert eyes on it. A critique carries far more weight when a qualified professional signs it. Guatemalan universities, hydrologists, agronomists, and the technical teams of environmental and Indigenous-rights organisations are realistic sources, and a hydrological assessment of a diverted river is often the single most valuable technical document a campaign can obtain.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms. Document:

- **Health and water access** — what people will drink, wash in, and irrigate with if the source is diverted or contaminated, and the distances involved if it is lost.
- **Economy and livelihoods** — milpa, coffee, cardamom, fishing, and local commerce at risk, set against the project's claimed jobs and royalties, which in Guatemalan disputes are frequently overstated relative to what reaches the municipality.
- **Community, culture, and cohesion** — ceremonial sites, community structures, and the social division that projects commonly create between beneficiaries and opponents.

Package this layer twice: a rigorous version for MARN, the courts, and the consultation, and a plain-language version **in the community's own language** for assemblies and neighbours.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — water sources, territory and occupation, and the community's authorities and practice, before works begin.
- **Phase 2: Legality (Months 1-3)** — obtain the instrument and the licences; establish categorisation, procedure, and whether consultation occurred.
- **Phase 3: Human and economic (Months 3-4)** — quantify the stakes and prepare the bilingual materials.
- **Phase 4: Protection (ongoing)** — maintain a dated record of the community's peaceful, lawful action, and of any threats, surveillance, or legal action against leaders.

Common Documentation Pitfalls (What Fails)

- **Missing the vista al público** — the window is short and notice is thin; assign someone to watch for it.

- **Neglecting evidence of Indigenous presence and authority** — this is the foundation of the strongest claim you have.
- **Not obtaining the MEM licence file** — the sector licence, not the environmental one, is usually the more vulnerable act.
- **Only environmental data** — consultation, water access, and cultural evidence carry as much weight.
- **Keeping everything in one place** — in a context of criminalisation and raids, distributed, secure backups matter.
- **No protection record** — documenting threats and the peaceful character of community action is part of defending your leaders.

Documentation Budget Breakdown (Q)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Water and territory baseline	minimal	modest
Hydrological or technical report	often pro bono	moderate
Translation and bilingual materials	modest	modest
Legal support (amparo)	often free (public-interest orgs)	moderate
Legal defence for criminalised leaders	budget for it	budget for it
Travel between dispersed communities	modest	moderate

Most of this can be done at low cost through community effort and public-interest organisations. The line most campaigns fail to plan for is **legal defence for leaders**; in Guatemala, budget for it from the start.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a Guatemalan case exists in official files. The job is knowing which office holds which record — and asking early.

MARN. The **expediente** for the project: the environmental instrument, the categorisation, the record of the **vista al público** and any public meeting, the mandatory opinions, the **resolución**, and the **licencia ambiental** with its conditions and monitoring obligations.

MEM. For mining and hydro, the **licence or concession file** — application, grant, boundaries, and, crucially, **whether any consultation preceded it**. In the leading cases, the absence of consultation in this file is what decided the litigation.

The municipality. Construction and land-use licences, municipal council resolutions, records of any **consulta de vecinos**, and the municipal development plan.

Water and land records. Rights over public-domain waters, land registry entries, and communal land documentation.

Community and Indigenous records. Assembly minutes, the acts of any **consulta comunitaria**, the designation of ancestral authorities, and community maps — these are evidence, and should be kept formally.

Company and money. The commercial registry for company and shareholder information, including foreign parent companies, and any public contracts.

How to force a document open. Guatemala's **Ley de Acceso a la Información Pública (Decreto 57-2008)** obliges public bodies to answer information requests within short statutory periods through their **unidades de información pública**, with a right of appeal. This is a genuinely effective and underused tool, and the template at Section 8E uses it.

The PDH. The human rights ombudsman can request information, investigate, accompany communities, and issue findings — a useful and comparatively safe channel.

Free and low-cost help. Guatemala has experienced public-interest environmental and Indigenous-rights legal organisations that have brought the country's landmark consultation cases, alongside university clinics and human-rights accompaniment organisations. **Approaching one of these early is the highest-value single step**, both for the litigation and for the protection of your leaders.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the licensing authority, and the local-ally entries point you to the organisations and lawyers already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Guatemala, organising is not merely how you generate pressure — where Indigenous peoples are affected, **it is the legal foundation of your strongest claim**. The consultation right belongs to peoples acting through their **own representative institutions**, so the community's authorities, assemblies, and decision-making practice are what the courts look to. Guatemala also has one of the deepest traditions of community organisation anywhere: ancestral authorities, Indigenous mayors, community councils, and the practice of **consultas comunitarias**, of which hundreds have been held.

Three principles carry special weight here: **organise through your own authorities** (they are the rights-holders, and their legitimacy is what a court recognises); **decide collectively and record it** (assembly minutes and consultation records are evidence, and they protect individuals from being singled out); and **plan protection from day one** (criminalisation of leaders is a documented, recurring feature of these conflicts, and legal defence should be arranged before it is needed, not after).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: Start with the most affected — and with the authorities. Reach the households whose water, land, or homes are at stake, and engage the community's **ancestral and elected authorities** at once, at their own pace and through their own procedures. Listen first: water, land, and the integrity of the territory are what move people.

Step 1b: Affinity groups by concern. Let people join through what they care about — water, land, health, forest, the river, ceremonial sites. Women's committees and youth groups have been central in Guatemalan territorial defence.

Step 1c: Take a formal community decision — and get legal support immediately. Convene an **assembly**, take a recorded decision, and minute it properly, because that record is evidence. In parallel, contact a public-interest legal organisation: they can obtain the files, assess whether the consultation right is engaged, and prepare an **amparo** — and they can advise on protection for your authorities before any criminal complaint is filed against them.

PHASE 2: PUBLIC LAUNCH (Months 2-4)

Step 2a: Community assembly. Hold a broad assembly to inform, decide collectively, and mandate representatives; bring the maps, the instrument's own admissions, and the deadlines. Work in the community's language, with translation where needed.

Step 2b: Materials in your own language. One-page, factual, sourced materials in the community's language and Spanish; lead with water and territory and the specific deadline.

Step 2c: Objections at the vista al público. Coordinate written objections during the public display period, and **request the public meeting** where the procedure allows it, since a requested meeting creates a formal record of opposition.

Step 2d: Consider a consulta comunitaria — with clear expectations. A community consultation, conducted through your own forms with translators and validation by your authorities, is a powerful demonstration of position and an important piece of evidence. But be honest with your community about its legal effect: the Constitutional Court has held that such consultations cannot themselves authorise or veto extractive projects, and in 2018 declared a long series of them legally non-existent. **Use it for legitimacy, mobilisation, and evidence — not as the legal mechanism.**

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Broaden the alliance. Bring in neighbouring communities and municipalities sharing the same river or watershed, Indigenous organisations and networks, environmental and human-rights groups, churches, academics and technical experts, and — importantly — **human-rights accompaniment organisations**, whose presence provides a measure of protection.

Step 3b: Coalition agreements. Agree roles, spokespeople, and messaging before disagreements arise, and settle explicitly who represents the community, who instructs the lawyers, who holds the records, and who speaks publicly — deciding this collectively also reduces the exposure of any single individual.

Step 3c: Coordinated work. Joint objections, a joint amparo where several communities are affected, shared technical

evidence, and a common approach to the municipality, MARN, MEM, and the PDH.

PHASE 4: SUSTAINED PRESSURE (Months 6 onward)

Step 4a: Political and municipal pressure. Seek formal municipal council resolutions against the project and the withholding of local licences; engage departmental authorities and sympathetic members of Congress; keep the PDH involved.

Step 4b: Public actions and media (ongoing) — with care. Assemblies, marches, and peaceful demonstrations are a constitutional right and a deep tradition. But Guatemala's context is genuinely dangerous: participants and especially leaders have faced criminal complaints, arrest warrants, and prosecution, and conflict zones have seen militarisation and states of exception. Take legal advice before actions, keep everything peaceful and documented on video, avoid any conduct that could be characterised as coercion or obstruction, and have lawyers on standby. Where risk is high, consider seeking **precautionary measures** through the Inter-American system.

Step 4c: Prevent failure points. Campaigns fail when they miss the short deadlines, rely on a community consultation as if it were legally decisive, allow one or two individuals to become the visible face and therefore the target, or are divided by employment and local spending. Diarise deadlines, decide collectively, rotate and share public roles, and prepare legal defence in advance.

Worked example: a community that unlocks the strong levers

Communities along a river learn that a hydro concession has been granted and works are starting. Anger is immediate and a march is proposed — real energy, and real risk. What converts it into force happens differently. First, the communities act **through their own authorities**, convening assemblies and recording formal decisions in their own language, because those authorities and records are the legal foundation of the consultation right. Second, they contact a **public-interest legal organisation**, which obtains the **MEM concession file** and establishes the decisive fact: **no prior consultation was carried out**. Third, they document **water use and Indigenous presence** — who drinks from the river, the ceremonial sites, the community's history in the territory — the evidence a court needs, and the evidence the State tried to deny in the Escobal case. Fourth, an **amparo** is filed against the concession with an urgent request for **provisional suspension**, which is the only mechanism fast enough to stop the works. Fifth, in parallel, they arrange **legal defence and accompaniment for their authorities**, because criminal complaints against leaders frequently follow. Meanwhile a **consulta comunitaria** is organised — not as the legal instrument, but to demonstrate and record the community's position beyond doubt. The lesson generalises: **in Guatemala, the authorities you organise through and the concession file you obtain in month one are what make the suspension possible in month six — and the protection you arrange in month one is what keeps your leaders free to see it through.**

Opposition Building Budget: Year-Long Campaign (Q)

Modest in cash terms, demanding in effort. Assemblies, travel between dispersed communities, translation, printing, and the community consultation are the recurring costs, mostly met collectively. Legal representation for the amparo is frequently provided by public-interest organisations. The item to plan deliberately is **legal defence for criminalised leaders**, together with accompaniment and, where needed, relocation support. Fund through community contributions, solidarity, and organisational support, and keep transparent accounts — which also protects the campaign against accusations later used to discredit it.

STEP 4: LEGAL CHALLENGES

Guatemala's legal system is weak in many respects but offers one exceptionally strong tool, and the whole strategy should be built around it. Three tracks — the administrative route, the constitutional route, and the international backstop.

TRACK 1: THE ADMINISTRATIVE ROUTE (the front door)

- **Objections at the vista al público.** During the public display of the environmental instrument, submit written, evidenced objections and **request the public meeting** where the procedure provides for one. Keep stamped copies. Even where MARN approves anyway, these objections become part of the record that later supports an amparo — particularly on water and cumulative impacts.
- **Challenge the categorisation.** If a project has been placed in a category too low for its true scale, say so formally: a wrong categorisation means the wrong instrument and less public process, and it is a clean ground of illegality.

- **Administrative challenge to the resolution.** The administrative-procedure law requires resolutions to be issued by a competent authority, to cite their legal basis, and to be **reasoned and clearly drafted**. A licence granted with boilerplate reasoning, or without answering substantiated objections, is vulnerable. Periods are short — confirm them at once.
- **Municipal action.** Press the municipal council for formal opposition and the withholding of local licences.

TRACK 2: THE CONSTITUTIONAL ROUTE (the decisive lever)

- **Amparo for lack of prior consultation.** The strongest tool in Guatemalan practice. Where **Indigenous peoples** are affected and the State authorised the project without consulting them, an **amparo** can be brought against the authorising ministry — usually **MEM** — on the ground that the licence violates the consultation right under **ILO Convention 169**, which the Constitutional Court has held carries **constitutional rank**. The courts have found such licences **illegal and arbitrary**.
- **Amparo provisional — the fast remedy.** Ask for **provisional suspension** in the same petition. This is what stops works while the case proceeds, and it has been granted in the leading cases: in the Escobal litigation the Supreme Court, as amparo tribunal, granted a provisional amparo **suspending the mining licence**, and licences for the Oxec projects were suspended pending resolution.
- **What the court can order.** Suspension of the licence; a **consultation process** conducted in good faith with the peoples' own institutions; and, where consultation was purportedly held after the fact, a finding that it failed the requirement of being **prior**. The Constitutional Court's 2018 Escobal judgment ordered suspension of the mine's operations and a consultation of the Xinka people.
- **Environmental amparo.** Where the consultation trigger is unavailable, an amparo may still lie on environmental and due-process grounds — an inadequate instrument, an unreasoned resolution, a denial of participation, or a threat to the right to a healthy environment.
- **The Corte de Constitucionalidad.** The final authority, and the source of the jurisprudence. Its rulings bind, and its record on consultation — though not perfectly consistent — is the backbone of community litigation.

TRACK 3: THE INTERNATIONAL BACKSTOP

- **The Inter-American system.** The Commission and Court can issue **precautionary and provisional measures** protecting defenders at risk, and hear cases where domestic remedies fail. In a context of criminalisation, this matters as much for **protection** as for the merits.
- **ILO supervision.** The Convention's supervisory bodies examine State compliance with the consultation duty and produce findings that support domestic litigation.

The three legal challenge types

TYPE 1: THE ADMINISTRATIVE ROUTE (the front door)

Objections at the *vista al público*, a challenge to categorisation, and administrative challenge to an unreasoned resolution — cheap, record-building, rarely decisive alone.

TYPE 2: THE CONSTITUTIONAL ROUTE (the decisive lever)

The amparo on absence of prior consultation, with **provisional suspension** — the tool that has actually stopped Guatemalan projects.

TYPE 3: THE INTERNATIONAL BACKSTOP

Inter-American precautionary measures and ILO supervision — slower, and vital for protection.

Legal Strategy Decision Tree

1. **Are Indigenous peoples affected and was there no prior consultation?** → File an **amparo against the sector licence** with an urgent request for **provisional suspension**. This is the highest-yield action available.
2. **Is the *vista al público* open?** → File objections and request the public meeting now.
3. **Is the categorisation too low for the project's real scale?** → Challenge it; forcing a full study and full participation is a substantive win.
4. **Is the resolution unreasoned or your objections unanswered?** → Administrative challenge, then amparo.
5. **Are leaders being threatened or criminalised?** → Arrange legal defence and consider **Inter-American precautionary measures** immediately.

Litigation Success Factors

Speed, and above all filing before works become irreversible; evidence of **Indigenous presence, occupation, and representative authorities**; the **absence of consultation** documented from the licence file itself; a clear request for **provisional suspension**; petitioners who are the community's recognised authorities; experienced public-interest counsel; and a protection plan running alongside the case.

What to Avoid: Legal Failures

Relying on a **consulta comunitaria** as though it were legally binding; missing the short administrative periods; challenging only the environmental licence while leaving the sector licence untouched; failing to request provisional suspension; and leaving leaders exposed without legal defence.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Guatemala.

Indigenous peoples affected and no prior consultation → amparo; licence suspended; consultation ordered (the strongest ground). Feed it with: evidence of presence, occupation, language, ancestral authorities, and self-identification, plus the licence file showing no consultation preceded it.

Consultation held only after works began → the same ground. Feed it with: the chronology of the licence, the works, and the purported consultation — the Oxec pattern.

Under-categorisation → wrong instrument, deficient participation. Feed it with: the project's true scale and characteristics against the category applied.

An unreasoned resolution or unanswered objections → administrative illegality. Feed it with: your stamped objections and the text of the resolution.

Threat to water supply → environmental amparo and the public-benefit argument. Feed it with: the sources affected, users, and the hydrological assessment.

Ignored cumulative effects → deficient assessment. Feed it with: the other licences in the same watershed and the instrument's silence.

Threats and criminalisation of leaders → PDH, Inter-American precautionary measures. Feed it with: your dated record of peaceful community action and of the threats and legal actions taken against your authorities.

The pattern: **lead with consultation where it is available**, support it with water and procedural grounds, and always ask for **provisional suspension**.

STEP 5: MEDIA STRATEGY

Media matters in Guatemala for two reasons: it raises the political and reputational cost of a project, often reaching the foreign investors and stock markets behind the largest mines; and — importantly — **visibility protects people**. Leaders who are known, whose peaceful conduct is documented, and whose case is covered are somewhat less exposed than those who are not.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the instrument's own admissions, the licence file showing no consultation, a named community authority who can speak, a clear date — the display deadline, the hearing, the assembly — and a strong image: the river, the assembly, the ceremony. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a rights violation + a David-and-Goliath frame + a visual = coverage. Three angles reliably travel: **water**, **the denial of consultation and Indigenous rights**, and **criminalisation of community leaders** — the last being both newsworthy and directly protective.

Know the Outlets That Cover This Beat

Map the national press and its investigative desks, the strong Guatemalan **community and independent media** that cover territorial conflicts closely and in Indigenous languages, **community radio**, and international outlets and wire services, which matter where a foreign-listed company is involved.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer access — to the territory, to authorities, to your technical evidence — and be scrupulously accurate, because inaccuracy is used both to discredit campaigns and as a basis for legal action against them.

Why media matters even when it doesn't make the front page

Coverage reaches the lawyer who will file the amparo, the technical expert who will assess the river, the international organisation that will accompany you, and the investors who dislike the reputational exposure. And a documented, public record of peaceful community action is one of the practical protections available to leaders at risk.

Sample Media Timeline

Launch with the vista al público or the assembly; refresh at each milestone — the objections, the amparo filing, the provisional suspension, the consultation, the judgment, and any criminalisation of leaders. Each is a natural news peg.

Media Measurement

Track coverage, but measure what matters: whether the courts and the PDH engage, whether accompaniment and legal support arrive, whether leaders are safer, and whether the project's timeline and financing are slipping.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. File important ones through the entity's **unidad de información pública** or receiving office and keep the stamped copy — proof of filing matters, and short deadlines are decisive. Have a lawyer review anything heading to court, and do not publish accusations you cannot prove: in Guatemala that carries both legal and physical risk.

8A. Email to a reporter (story pitch)

Subject: [Municipality, Department]: [project] licensed without consultation of the [people] — documents attached
Estimada/o [name],

A [project type] has been licensed at [location], affecting [number] communities of the [Xinka/Maya Q'eqchi'/Kaqchikel/...] people. The **MEM file shows no prior consultation** was carried out before the licence was granted [reference/date]. The environmental instrument itself admits [specific impact, quoted, with page number], including effects on the [river/springs] from which [number] families take water.

The communities, through their **ancestral authorities**, have [submitted objections / filed an amparo requesting provisional suspension] and are documenting [threats against / criminal complaints filed against] their leaders.

I can arrange interviews with the authorities and a visit to the territory. Could we speak this week?

[Name] · [Organisation/community] · [phone] · [email]

8B. Objection during the vista al público

Asunto: Oposición al instrumento ambiental del proyecto [name], expediente [number]

Señor Ministro de Ambiente y Recursos Naturales:

Las comunidades de [names], por medio de sus autoridades, presentamos oposición dentro del período de vista al público: 1. **Agua.** [The project affects the [river/springs] used by [number] families for drinking and irrigation; the instrument does not adequately assess quantity, quality, or downstream users.] 2. **Categorización.** [Given its scale and characteristics, the project should have been categorised as [A/B1], requiring a fuller study and fuller participation.] 3. **Impactos acumulativos.** [The instrument ignores [number] other licences in the same watershed.] 4. **Consulta.** [The project affects Indigenous peoples; no prior consultation under ILO Convention 169 has been carried out.]

Solicitamos que se deniegue la viabilidad ambiental y que se convoque la reunión pública prevista en el procedimiento.

[Autoridades, comunidad, fecha, contacto; retain the stamped copy]

8C. Request for a public meeting

Asunto: Solicitud de reunión pública — expediente [number]

Señor Ministro:

Dentro del plazo establecido, las comunidades de [names], por medio de sus autoridades, **solicitamos que se convoque la reunión pública** prevista en el procedimiento de evaluación del proyecto [name], a fin de exponer nuestras observaciones sobre [water, territory, health].

Solicitamos que la reunión se realice en [locality], con interpretación al idioma [language], para permitir la participación efectiva de las comunidades afectadas.

[Autoridades, fecha, contacto]

8D. Request for legal support to a public-interest organisation

Asunto: Solicitud de acompañamiento legal — proyecto [name]

Estimadas/os [organisation]:

Las comunidades de [names], del pueblo [people], estamos afectadas por [project] en [location]. Contamos con: actas de asamblea, documentación de nuestras autoridades ancestrales, registro del uso del [río/nacimientos], y [copia del expediente / constancia de haberlo solicitado].

Consideramos que la licencia fue otorgada **sin consulta previa**. Solicitamos su asesoría y, de considerarlo procedente, la presentación de un **amparo con solicitud de amparo provisional**, así como orientación sobre la protección de nuestras autoridades ante posibles acciones penales en su contra.

[Nombre, comunidad, contacto]

8E. Access to information request (Decreto 57-2008)

Asunto: Solicitud de información pública

A la Unidad de Información Pública del [Ministerio de Energía y Minas / MARN / Municipalidad de ____]:

Con fundamento en la **Ley de Acceso a la Información Pública, Decreto 57-2008**, solicito copia de: 1. el expediente completo de la licencia [minera/hidroeléctrica/ambiental] del proyecto [name], incluyendo solicitud, resolución y condiciones; 2. **toda constancia de proceso de consulta previa** realizado antes del otorgamiento de dicha licencia; 3. el instrumento ambiental, el acta de la vista al público y las opiniones técnicas obligatorias; 4. los estudios sobre disponibilidad y uso del agua en el área del proyecto.

Solicito respuesta dentro del plazo legal. [Nombre, dirección, fecha]

8F. Complaint to the PDH

Asunto: Denuncia — proyecto [name], derecho a la consulta, al agua y a defender derechos

Señor Procurador de los Derechos Humanos:

Las comunidades de [names], del pueblo [people], denunciamos que [project] fue autorizado **sin consulta previa**, afecta nuestras fuentes de agua, y que nuestras autoridades han sido objeto de [amenazas / denuncias penales / vigilancia].

Solicitamos su intervención, la verificación en el territorio, el acompañamiento a nuestras autoridades y un pronunciamiento institucional. Adjuntamos [documentación].

[Autoridades, fecha, contacto]

8G. Press release (effective)

COMUNICADO — [fecha]

Comunidades de [municipality] acuden a los tribunales: [project] fue autorizado sin consulta

Las comunidades [names], del pueblo [people], por medio de sus autoridades ancestrales, [presentaron oposición ante el MARN / interpusieron un amparo con solicitud de amparo provisional] contra [project], por haberse otorgado la licencia **sin la consulta previa** que exige el Convenio 169 de la OIT. "[Cita breve y humana de una autoridad comunitaria]", declaró [nombre].

El instrumento ambiental admite [impacto citado]. El proyecto afecta [el río ____], del que [number] familias obtienen agua. La Corte de Constitucionalidad ha establecido que las licencias otorgadas sin consulta son ilegales.

Contacto: [nombre, teléfono]. Fotografías, documentación y entrevistas disponibles.

8H. Report of threats or criminalisation of community authorities

Asunto: Denuncia de hostigamiento y criminalización contra autoridades comunitarias

A [la PDH / organizaciones de derechos humanos / mecanismos internacionales]:

Informamos que, desde [fecha], las autoridades comunitarias [names/roles] de [community] han sido objeto de [denuncias penales / órdenes de captura / amenazas / vigilancia], en el contexto de la oposición pacífica de nuestras comunidades a [project].

Adjuntamos: cronología de los hechos con fechas, copias de las actuaciones judiciales conocidas, y registro documental y audiovisual del **carácter pacífico** de nuestras acciones comunitarias.

Solicitamos acompañamiento, verificación y, en su caso, gestión de **medidas cautelares** ante el Sistema Interamericano.

[Autoridades, fecha, contacto]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual expediente and dates, and have counsel review anything heading to court. **Deadlines decide outcomes** — the vista al público is short, administrative challenge periods are shorter, and an amparo should be filed as soon as the unlawful act is known, with **provisional suspension** requested whenever works are advancing. Keep stamped copies of everything. And keep public statements to documented facts: in Guatemala, unproven accusations expose campaigners to criminal complaints and to danger, so let the files and the courts carry the argument.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can sustain a multi-year campaign. If you have limited time, you can still do real damage to a bad project — and in Guatemala one question matters more than all the others. In rough order of impact for the effort:

1. **Find out whether prior consultation was carried out.** Request the licence file from **MEM** (Section 8E) and look for any record of consultation before the licence was granted. If there is none and Indigenous peoples are affected, **you have the strongest legal ground available in the country.**
2. **Contact a public-interest legal organisation** (Section 8D). They have brought the landmark consultation cases, can file an **amparo with a request for provisional suspension**, and can advise on protecting your authorities.

3. **Take a formal, minuted community decision** through your own authorities. It costs nothing, it is evidence, and it protects individuals by making the position collective.
4. **File objections at the vista al público** and request the public meeting (Sections 8B and 8C) if the window is open. Keep the stamped copy.
5. **Document your water sources and your presence in the territory** — photographs, users, ceremonial sites, community history. This is the evidence a consultation case rests on.
6. **File a PDH complaint** (Section 8F) — free, and it brings a national institution into the territory.
7. **If anyone is threatened or faces a criminal complaint, act immediately** (Section 8H): legal defence, accompaniment, and consideration of Inter-American precautionary measures.

If you do only the first three, you have identified whether the decisive ground exists, connected the community to people who litigate it professionally, and created the collective record on which everything else builds. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Guatemala's system is under-resourced, licences are granted on developer-funded studies, ministries have overridden and even denied communities, the courts have been inconsistent, and defending territory carries serious personal risk. Being honest about this is how you pick tools that work and keep people safe.

What This Tilt DOES (and DOESN'T DO)

The tilt means environmental scrutiny is thin, sector licences are granted centrally with little regard for local objection, community consultations have been stripped of legal effect, and those who lead face criminalisation. It does **not** close the doors: **ILO Convention 169 has constitutional rank**, the courts have declared licences granted without consultation **illegal and arbitrary**, **provisional amparo can suspend a project quickly**, the **PDH** and the **Inter-American system** provide oversight and protection, and access-to-information law gives you the files. The key is to litigate the consultation question early and to protect your people from the outset.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Indigenous peoples affected, no consultation, organised authorities, legal support engaged.** This is the strongest configuration available in Guatemala, and it has stopped real projects.
- **Mixed.** Environmental grounds only, or a divided community, or a project with strong local employment. Weight shifts to the vista al público, categorisation challenges, municipal opposition, water evidence, and media.
- **Entrenched.** A large project backed by powerful economic and political interests, with local beneficiaries and a pattern of criminalisation. Assume a long fight; prioritise **protection**, keep decisions collective, litigate patiently, and treat suspension and delay as genuine wins.

Documented Guatemalan Dynamics

The record shows both the strength and the danger. **The Constitutional Court has held ILO Convention 169 to have constitutional rank**, and that mining and hydroelectric licences granted without consultation are illegal and arbitrary — reasoning reinforced by the constitutional rule that provisions diminishing guaranteed rights are **null ipso jure**. **Courts have suspended real, operating projects** — the Supreme Court granted a provisional amparo suspending the **Escobal** mining licence, and the Constitutional Court's 2018 judgment found the State had violated the **Xinka** people's consultation rights and ordered suspension and a consultation; **Oxec** licences were similarly suspended. **Communities can run the consultation themselves** — the Xinka process, conducted through their own forms of organisation and decision-making across pre-consultation, technical analysis, field visits, and deliberation, produced a documented refusal delivered in 2025. **But the Court has also cut against communities** — in 2018 it declared the **34 consultations** held over twelve years by Maya Kaqchikel communities of San Juan Sacatepéquez legally "non-existent", holding that only the ministry may authorise extractive projects. **And leaders are criminalised** — the prosecution and imprisonment of Indigenous authorities in these conflicts is documented and recurring. The lesson: **the consultation right is real and enforceable; the community consultation is legitimacy rather than law; and protection is not optional.**

Assessment Framework — Determine Your Situation

Ask: are Indigenous peoples affected, and was there prior consultation? Can we obtain the licence file? Are our authorities

organised and our decisions recorded? Is water at stake? Is the municipality with us? Are works advancing, making provisional suspension urgent? Are leaders exposed, and is legal defence arranged? The answers tell you whether to lead with the consultation amparo or with environmental and procedural grounds — and how much of your effort must go to protection.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Guatemalan territorial defence has a deep tradition of assemblies, marches, ceremonies at threatened sites, and sustained community presence. Peaceful assembly is a constitutional right. But the risks here are among the highest anywhere: community leaders have faced criminal complaints, arrest warrants, prosecution and imprisonment; conflict areas have been militarised and placed under states of exception; and defenders have been killed. Take legal advice before any action, keep everything strictly peaceful and thoroughly documented on video, avoid any conduct capable of being characterised as coercion, obstruction, or usurpation, arrange lawyers in advance, share public roles so no individual becomes the sole target, and consider seeking **precautionary measures** where threats appear. This guide notes such tactics exist; it does not advise breaking the law, and in Guatemala the safety of the people is the campaign's first asset.

Honest Assessment

Tilted fights are harder, and Guatemala's are long and dangerous. But "harder" is not "hopeless": communities here have obtained the suspension of an operating mine, halted hydroelectric licences, forced the State to consult, and built jurisprudence that other peoples now use — outcomes that many wealthier countries' movements have not achieved. Concentrate force where the tilt is weakest — the constitutional consultation right — organise through your own authorities, and protect your leaders as carefully as you build your case.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it does not look the same in every institution. Read your situation actor by actor. Handle it with particular care here: unproven public accusations expose campaigners to criminal complaints in a system where such complaints are already used against defenders.

The consultants and the instrument. The environmental study is written by consultants the developer engages and pays. Signs: an instrument that understates water use, omits downstream users, or ignores other licences in the watershed. Lever: technical critique, objections at the *vista al público*, and the amparo.

MARN. An under-resourced ministry approving instruments it lacks capacity to verify. Signs: approval despite substantiated objections, boilerplate reasoning, a category plainly too low. Lever: the access-to-information request, the reasoning requirement of the administrative-procedure law, and judicial challenge.

MEM and the sector licence. The central pressure point, because this is where licences are granted over territory. Signs: licences issued without any consultation record; in the most-documented case, a ministry asserting that the affected Indigenous people did not exist in the municipalities concerned. Lever: the licence file itself and the consultation amparo.

Local political and economic actors. Projects commonly create beneficiaries — contracts, employment, local spending — which divides communities. Signs: sudden shifts by local officials, new committees appearing to support the project. Lever: collective decision-making, transparent accounts, and municipal pressure.

The criminal justice system. The most serious form of capture in Guatemala is not a bribe but the **use of criminal law against defenders** — complaints filed by companies or officials leading to arrest warrants and prosecutions of community authorities. Lever: pre-arranged legal defence, documentation of the peaceful character of community action, the PDH, and Inter-American precautionary measures.

The companies. Establish ownership and corporate parentage from the commercial registry — provable, documentary facts, which matter especially where a foreign-listed parent is exposed to reputational and investor pressure.

How to act on it, safely. Document from official files before you speak. Route genuine allegations to the **Contraloría General de Cuentas** for public money, the **Ministerio Público** where a real offence is disclosed, and the **PDH** for rights violations — and, above all, into your **amparo and your international submissions**, where they are protected and consequential. Do not publish unproven accusations about named individuals: in Guatemala this is both a legal and a

physical risk. Name capture privately in your strategy; prove it publicly only when you can.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Guatemala the timeline has a distinctive shape: a short administrative window, an early constitutional filing that can freeze the project, and then a long process — often years — in which consultation and litigation run together while the community must be protected throughout.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the one-page fact sheet — category, licences, whether the consultation right is engaged, the municipality's position, every deadline. - Organise through **ancestral and community authorities**; convene an assembly and record a formal decision. - **File access-to-information requests** for the MARN instrument and, critically, the **MEM licence file with any consultation record** (Section 8E). - Contact a **public-interest legal organisation**, and ask at the same time about **protection for your authorities**. - Begin baseline documentation (Step 2, Layer 1) — water sources, territory, occupation, ceremonial sites.

Months 2-4 (Launch). - File **objections at the vista al público** and **request the public meeting** if the window is open (Step 4, Track 1). - Where consultation is absent and works are advancing, support the filing of an **amparo with a request for provisional suspension** (Track 2) — the decisive action. - Hold the community assembly and, where decided, begin preparing a **consulta comunitaria** for legitimacy and evidence. - Launch media on water and the absence of consultation (Step 5). - Complete the impact and legality analysis (Step 2, Layer 2).

Months 4-8 (Expansion and consolidation). - Broaden the coalition — neighbouring communities in the watershed, Indigenous networks, human-rights accompaniment, technical experts (Step 3, Phase 3). - Press for **municipal opposition** and formal council resolutions. - File the **PDH complaint**; complete the human and economic layer (Step 2, Layer 3). - Maintain the **protection record** and act immediately on any threat or criminal complaint (Section 8H).

Months 8-12 (Suspension and the consultation question). - Pursue the amparo to **provisional and then definitive resolution**; expect the case to reach the **Corte de Constitucionalidad**. - If a consultation is ordered, prepare to **conduct it on your own terms** — through your own authorities, in your own language, with pre-consultation, technical analysis, field visits, and internal deliberation, as the Xinka process did. - Sustain media and international attention, particularly where a foreign-listed company is involved.

Beyond 12 months. - Expect years, not months: the leading cases ran from suspension through judgment to a consultation whose results were delivered many years later. - Keep the authorities, the records, and the legal team intact, and keep protecting your leaders — criminalisation often intensifies as a case succeeds. - Where the State fails to comply, return to the courts and to the international bodies.

Warning Signs — Act Early

An environmental instrument appears on public display; a licence or concession is granted; survey teams, machinery, or road-building appear; local committees suddenly form in support of the project; a criminal complaint is filed against a community leader. Each is a trigger to act at once — and the last one is a signal to activate legal defence immediately, not later.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: organise through their own authorities and record decisions collectively; obtain the licence file and establish whether consultation occurred; file the **amparo early with a request for provisional suspension**; use the community consultation for legitimacy while relying on the constitutional right for law; keep water at the centre of the public argument; and **arrange legal protection before it is needed**. Losing campaigns: miss the short windows; treat the consulta comunitaria as legally decisive; challenge only the environmental licence; let one person become the face and the target; and leave leaders undefended.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Guatemala takes several forms, and it is worth naming them so you recognise a win when you get one: - an **amparo provisional suspending a licence** — including, in the leading case, the licence of an operating mine; - a **judgment finding the State violated the consultation right**, with suspension ordered and consultation required; - a **consultation conducted by the community on its own terms**, producing a documented, authoritative refusal; - an environmental licence **refused, conditioned, or annulled**, or a project forced into a higher category with full participation; - a **municipality formally opposed** and local licences withheld; - **years of suspension** that break a project's financing, or a company's withdrawal; - **precedent** that other peoples then use — which is how Guatemala's consultation jurisprudence was built; - and, not least, **leaders who remain free and safe** through it all.

Guatemalan communities have achieved every one of these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone, and weigh safety at every one. If Indigenous peoples are affected and consultation was absent, the amparo is almost always worth pursuing — this is the ground on which Guatemalan communities have won. If a consultation is ordered, the question becomes how to conduct it on your own terms and at your own pace, which is itself a form of power. If the environmental route alone is available, expect a harder fight and lean on water evidence, categorisation, and municipal politics. And if continuing would require exposing people to serious danger, **slow down and protect them**: no project is worth a leader's life or liberty, and a community that stays intact can litigate for years.

The Bottom Line

Guatemala's institutions are weak, its licences rest on developer-funded studies, its ministries have overridden and even denied whole peoples, and defending territory here is genuinely dangerous. But the country also offers one of the strongest legal levers found anywhere: **ILO Convention 169 has constitutional rank**, and the courts have held that mining and hydroelectric licences granted **without prior consultation are illegal and arbitrary** — suspending, by provisional amparo, even an operating mine, and requiring the State to consult the **Xinka** people whose very existence it had denied. Around that sit real supporting tools: the **vista al público** and the right to demand a public meeting; challenges to under-categorisation and to unreasoned resolutions; municipal autonomy; the **access-to-information law**; the **PDH**; and the **Inter-American system**, which protects defenders as well as rights. Communities that organise through their own authorities, obtain the licence file and establish whether consultation occurred, file an amparo early with a request for provisional suspension, use community consultation for legitimacy rather than as a legal veto, keep water at the centre of the public case, and arrange legal protection for their leaders from the first week have suspended mines, stopped dams, forced the State to consult, and written the jurisprudence the next community will rely on. No single step wins; the combination does. Start today by asking one question — **was there prior consultation?** — and by keeping your people safe while you find out.